

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
JENNIFER MONTANEZ AND TYRONE HOWARD

Plaintiff designates

Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose

-against-

CITY OF NEW YORK, NELSON PENA, BAHIR
MUSTAFA, and JOHN or JANE DOE 1-10, individually
and in their official capacities and New York City police
officers,

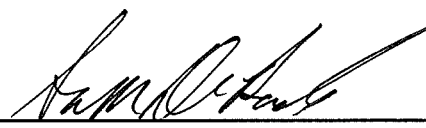
SUMMONS

Defendant.
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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 4, 2019


SIM & DEPAOLA, LLP
BY: *Samuel DePaola, Esq.*
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

Detective Bahir Mustafa
Narcotics Bureau Bronx
Shield #4533, Tax ID 928840
1 Police Plaza, Room 110C
New York, New York 10038

Detective Nelson Pena
Narcotics Bureau Bronx
Shield #1450, Tax ID 949462
1 Police Plaza, Room 110C
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JENNIFER MONTANEZ AND TYRONE HOWARD

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, NELSON PENA, BAHIR
MUSTAFA, and JOHN or JANE DOE 1-10, individually
and in their official capacities and New York City police
officers,Defendant.
-----X

Plaintiffs, JENNIFER MONTANEZ and TYRONE HOWARD, by their attorneys, Sim &
DePaola, LLP, for their complaint against the above Defendants, alleges as follows:

1. The claim arises from April 6, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained JENNIFER MONTANEZ ("Montanez") and TYRONE HOWARD ("Howard"). Plaintiffs were subsequently charged with Criminal Sale of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Third Degree and Criminal Possession of a Controlled Substance in the Seventh Degree. As a result, Ms. Montanez and Mr. Howard were deprived of their liberty, and caused to sustain physical and emotional injuries. Ms. Montanez and Mr. Howard were wrongfully incarcerated for approximately two (2) days, until they were released, on or about, April 7, 2018, when they were arraigned.
2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff Jennifer Montanez ("Ms. Montanez") resides at 1617 Lafayette Avenue, Apartment #4, Bronx County, State of New York.
4. Plaintiff Tyrone Howard ("Mr. Howard") resides at 595 Trinity Avenue, Apartment #6J, Bronx County, State of New York.
5. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
6. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") is responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
7. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
8. Defendant Nelson Pena ("Pena") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Pena was, at all times relevant herein, a Police Officer and/or detective under Shield No. 1450, Tax Reg. No. 949462, of Narcotics Bureau Bronx, at 1 Police Plaza, Room 110C, New York, New York 10038. Defendant Pena is being sued in his individual and official capacities.

9. Defendant Bahir Mustafa ("Mustafa") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Mustafa was, at all times relevant herein, a Police Officer and/or detective under Shield No. 4533, Tax Reg. No. 928840, of Narcotics Bureau Bronx, at 1 Police Plaza, Room 110C, New York, New York 10038. Defendant Mustafa is being sued in his individual and official capacities.
10. Defendant John or Jane Doe 1 is the undercover officer referenced in the criminal court complaint under docker number 2018BX011670 and who allegedly observed plaintiffs participate in the alleged criminal sale of crack cocaine. John or Jane Doe 1 is believed to be an undercover NYPD officer of Narcotics Bureau Bronx, at 1 Police Plaza, Room 110C, New York, New York 10038. Defendant John or Jane Doe 1 is being sued in his or her individual and official capacities.
11. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff's do not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
12. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
13. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

14. Within 90 days of accrual dates for these claims, Plaintiff's timely filed a written notice of claim with the New York City Office of the Comptroller.
15. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
16. Plaintiffs have complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
17. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

18. On April 6, 2018, at approximately 2:00 p.m., Mr. Howard was at a barber shop located at 831 Rosedale Avenue, Bronx, NY. Mr. Howard had taken his two minor children to the barber shop for haircuts.
19. While waiting for his haircut, Mr. Howard walked outside to smoke a cigarette.
20. Once outside, Mr. Howard spoke to Ms. Montanez, who was walking past the barber shop.
21. After talking to Ms. Montanez for a few minutes, Mr. Howard went back inside the barbershop to get his hair cut.
22. Ms. Montanez continued walking down the street.
23. At no point did Mr. Howard or Ms. Montanez sell any drugs or offer to sell any drugs to anyone.
24. At no point did Mr. Howard or Ms. Montanez engage in any conversation with anyone regarding drugs or the selling of drugs, including John or Jane Doe 1, the undercover officer.
25. At no point did Plaintiffs have any drugs in their possession.

26. Mr. Howard was getting his hair cut when he was confronted by Defendants who arrested, handcuffed and searched him in front of his children without a valid warrant.
27. Mr. Howard was grabbed and handcuffed by Defendants Pena and Mustafa.
28. Defendants Pena and Mustafa affixed the handcuffs on Mr. Howard extremely tightly, causing substantial pain and injury to his wrists and hands.
29. Defendants Pena and Mustafa refused to loosen the handcuffs, despite repeated pleas from Mr. Howard that they were causing him substantial pain and suffering.
30. Mr. Howard then was thrown in a van by Defendants Pena and Mustafa.
31. Mr. Howard, after being driven around for 2 hours, was eventually taken to the 48th NYPD Precinct.
32. Ms. Montanez was walking down the street near the barber shop, when she was confronted by Defendants Pena and Mustafa, who arrested, handcuffed and searched her without a valid warrant.
33. Ms. Montanez was placed in a van and eventually taken to the 48th Precinct by Defendants Pena and Mustafa
34. At the 48th Precinct, Defendants Pena and Mustafa illegally strip-searched Mr. Howard by forcing him to remove all of his clothing and submit to a cavity inspection.
35. Defendants, including Pena, Mustafa and John or Jane Doe 1, never observed Mr. Howard secreting any contraband within his person.
36. At the 48th Precinct, Ms. Montanez was also subjected to an illegal strip search and cavity inspection, by or at the direction of Defendants Pena and Mustafa.
37. Ms. Montanez was never observed secreting any contraband within her person.

38. No contraband was recovered from plaintiffs during the illegal strip searches and cavity inspections.
39. The Plaintiffs were processed and remained in custody at the 48th Precinct for approximately seven (7) hours before they were taken to Central Booking.
40. Plaintiffs remained in a cell at Central Booking until approximately 3:00 pm for Ms. Montanez and 6:00 pm for Mr. Howard, when they were released on their own recognizance. Plaintiffs returned to Court multiple times before all charges were dismissed on June 6, 2018.
41. At no point did Defendants, including John or Jane Doe 1, Defendant Pena and Defendant Mustafa, ever observe Mr. Howard or Ms. Montanez commit any crime or violation of the law.
42. At no point were the Defendants, including Defendant Pena and Defendant Mustafa, ever told by any witness, including John or Jane Doe 1, that either Mr. Howard or Ms. Montanez committed any crime or violation of the law.
43. At no point did Defendants, including John or Jane Doe 1, Defendant Pena and Defendant Mustafa, ever witness an alleged drug transaction committed by Ms. Montanez or Mr. Howard.
44. Plaintiff's never committed any crimes or violations of the law, including Criminal Possession of Controlled Substance or Criminal Sale of a Controlled Substance.
45. Defendant Pena and Defendant Mustafa were fully aware, at all times, that they lacked probable cause to arrest Mr. Howard and Ms. Montanez.
46. Defendant Pena and Defendant Mustafa lacked probable cause because they used improper and suggestive identification procedures to unlawfully accuse and arrest Ms. Montanez and Mr. Howard of a crime defendants, including John or Jane Doe 1, Pena and Mustafa, knew they did not commit.

47. Defendants John or Jane Doe 1, Pena and Mustafa knew that Plaintiff did not commit any crimes because they did not observe plaintiffs commit any crimes, including the criminal sale and possession of crack cocaine.
48. Defendants John or Jane Doe 1, Pena and Mustafa knowingly and intentionally fabricated a false version of events, namely that plaintiffs actively participated in the sale of crack cocaine, to justify the otherwise unlawful arrests of plaintiffs.
49. Plaintiffs were unlawfully prosecuted and processed in the 48th precinct.
50. Plaintiffs, Ms. Montanez and Mr. Howard, did not violate any law or local ordinance.
51. Defendants, including Defendant Pena and Defendant Mustafa, were fully aware that there was no probable cause to believe a prosecution would succeed against Ms. Montanez and Mr. Howard.
52. Defendants John or Jane Doe 1, Pena and Mustafa knowingly and intentionally forwarded false, misleading, incomplete and erroneous information, namely that plaintiff engaged or participated in the criminal sale and possession of crack cocaine, to prosecutors, so that a prosecution would be initiated against Ms. Montanez and Mr. Howard.
53. Defendants John or Jane Doe 1, Pena and Mustafa knew, at all times, that they lacked probable cause to believe a criminal prosecution would succeed against Plaintiffs.
54. Defendants John or Jane Doe 1, Pena and Mustafa were aware that they lacked probable cause because they never observed plaintiffs commit the crimes of criminal sale or criminal possession of a crack cocaine.
55. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiffs' arrest without probable cause.

56. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
57. The instant arrest of Plaintiffs' without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiffs.
58. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
59. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrests will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Ms. Montanez and Mr. Howard.
60. At all times relevant hereto, Defendants including Defendant John or Jane Doe 1, Defendant Pena and Defendant Mustafa acted maliciously and with intent to injure Plaintiffs.
61. At all times relevant hereto, Defendants, John or Jane Doe 1, Pena and Mustafa, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.
62. At all times relevant hereto, Defendants John or Jane Doe 1, Pena and Mustafa, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed

to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' criminal prosecution.

63. As a direct and proximate result of the acts of defendants, including the City of New York, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

64. The above paragraphs are here incorporated by reference as though fully set forth.
65. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
66. Plaintiffs were conscious of their confinement.
67. Plaintiffs did not consent to their confinement.
68. Plaintiffs' arrests and false imprisonment were not otherwise privileged.
69. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
70. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
71. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

72. The above paragraphs are here incorporated by reference as though fully set forth.
73. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
74. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
75. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
76. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
80. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered him without their consent.

81. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
82. As a direct and proximate result of this breach, Plaintiffs' sustained the damages hereinbefore alleged.
83. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

84. The above paragraphs are here incorporated by reference as though fully set forth.
85. The Defendants, acting under color of state law, violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.
86. Defendants engaged in and subjected Plaintiffs' to immediate harmful and/or offensive touching and battered him without their consent.
87. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
88. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

89. The above paragraphs are here incorporated by reference as though fully set forth.
90. Defendants initiated the prosecution against Plaintiffs'.

91. Defendants lacked probable cause to believe Plaintiffs' were guilty or that a prosecution would succeed.
92. Defendants acted with malice.
93. The prosecution was terminated in Plaintiffs' favor when the criminal charge was dismissed and sealed.
94. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
95. As a direct and proximate result of this breach, Plaintiffs' sustained the damages hereinbefore alleged.
96. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

97. The above paragraphs are here incorporated by reference as though fully set forth.
98. Defendants, acting under color of state law, initiated the prosecution against Plaintiffs.
99. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
100. Defendants acted with malice.
101. The prosecution was terminated in Plaintiffs' favor when they were acquitted of all charges.
102. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.
103. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

105. The above paragraphs are here incorporated by reference as though fully set forth.
106. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
107. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
108. Defendants intended to inflict substantial harm upon Plaintiffs.
109. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
110. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
111. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

113. The above paragraphs are here incorporated by reference as though fully set forth.

114. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
115. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
116. Defendants intended to inflict substantial harm upon Plaintiffs.
117. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
118. Defendants' actions deprived Plaintiffs' of their right to free from illegal searches and seizures, as well as their right not to be deprived of their liberty without due process of law.
119. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

121. The above paragraphs are here incorporated by reference as though fully set forth.
122. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
123. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.

125. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

126. The above paragraphs are here incorporated by reference as though fully set forth.

127. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

128. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

129. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

130. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

131. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

132. The above paragraphs are here incorporated by reference as though fully set forth.

133. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
134. Defendant City breached that duty of care.
135. Defendant City placed defendants in a position where they could inflict foreseeable harm.
136. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.
137. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.
138. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
139. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

140. The above paragraphs are here incorporated by reference as though fully set forth.
141. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.
142. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

143. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
144. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.
145. Defendant City's conduct violated Plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution.
146. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
147. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs' respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; together with the costs and disbursements of this action

Dated: Bayside, New York
April 4, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola
Attorneys for Plaintiffs
4240 Bell Blvd., Suite 500
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 4, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JENNIFER MONTANEZ AND TYRONE HOWARD

Plaintiffs,

-against-

CITY OF NEW YORK, NELSON PENA, BAHIR MUSTAFA, and JOHN or JANE DOE 1-10,
individually and in their official capacities and New York City police officers,

Defendant.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for